

HOUSE BILL 143

By Zachary

AN ACT to amend Tennessee Code Annotated, Title 39,  
relative to criminal offenses involving controlled  
substances.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-116, is amended by adding  
the following new subsection:

(e)

(1) A person commits aggravated assault against a first responder, who knowingly possesses fentanyl, carfentanil, remifentanil, alfentanil, thiafentanil, or a fentanyl analogue, in a manner that would be reasonably foreseen to expose a first responder to the substance while the first responder is discharging or attempting to discharge the first responder's official duties and the first responder is exposed to the substance resulting in:

(A) Serious bodily injury to the first responder; or

(B) The death of the first responder.

(2) As used in this subsection (e), "expose" means to come into direct contact with a substance by touch, ingestion, or inhalation.

(3) Aggravated assault under this subsection (e) is a Class C felony, punishable by a mandatory fine of fifteen thousand dollars (\$15,000) and a mandatory minimum sentence of ninety (90) days incarceration. The defendant is not eligible for release from confinement until the defendant has served the entire ninety-day mandatory minimum sentence.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.